

Legislating a “Normal, Classic Family”: The Rhetorical Construction of Families in American Welfare Policy

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This essay discusses the policy construction of welfare families through an analysis of the welfare hearings and debates from the 102nd, 103rd, and 104th Congresses, all of which led to President Clinton’s signing of the 1996 Personal Responsibility and Work Opportunity Reconciliation Act. Throughout the legislative process, witnesses and legislators relate stories about families on welfare and compare welfare families to an ideal nuclear family. This essay demonstrates the rhetorical appeal of these stories and their powerful influence on the resulting 1996 Act. The central argument of the essay is that depictions of welfare families influence legislation that affirms a historically privileged traditional family structure. The 1996 Act and subsequent proposals reinforce this married family ideal despite significant research demonstrating that (a) many Americans do not live in traditional nuclear families, (b) there are potential negative consequences of marriage promotion, and (c) federal reforms are unlikely to result in measurable increases in marriage rates.

Keywords congressional debates, congressional hearings, family values, gender, Personal Responsibility and Work Opportunity Reconciliation Act, public policy, welfare

The Congress makes the following findings:

- (1) Marriage is the foundation of a successful society.
- (2) Marriage is an essential institution of a successful society which promotes the interests of children.
- (3) Promotion of responsible fatherhood and motherhood is integral to successful child rearing and the well-being of children. . . . (*Personal Responsibility and Work Opportunity Reconciliation Act, Statutes at Large* 110, 1996, p. 2110)

These words open the 1996 Personal Responsibility and Work Opportunity Reconciliation Act, P. L. 104-193 (PRWORA). Lauded as “historic welfare legislation” that “rewrites six decades of social policy,” and “the most radical overhaul” in welfare policy, the 1996 Act officially ended the cash assistance, entitlement based program, Aid to Families with Dependent Children (Harris & Yang, 1996, p. A1; Vobejda, 1996, p. A1). As part of the

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act's scheduled October 1, 2002 reauthorization, Congress debated several welfare initiatives. On May 16, 2002, the House of Representatives passed a welfare bill designed to build on PRWORA's historic changes. A major provision of this bill was to provide up to \$300 million a year to states for the purposes of promoting "healthy marriages," fatherhood, and sexual abstinence.

The expiring 1996 Act still has not been reauthorized. A December 11, 2002, Brookings Institution briefing explains: "With terrorism and a potential war in Iraq dominating both headlines and politicians' attention, domestic social policy concerns have slipped into the background. Moreover, a worsening federal budget deficit has made it less likely that any costly social policy initiatives can be launched." Many scholars and practitioners alike are justifiably skeptical of how foreign policy and the economy will affect welfare reform. Still, if the passage of a House GOP bill on February 13, 2003, is any indication, PRWORA will be reauthorized in a form similar to the 1996 Act. On June 30, 2003, President Bush signed the Welfare Extension Act of 2003, H.R. 2350, which extended Temporary Assistance for Needy Families (TANF) funding through September 30, 2003. With a strong emphasis on marriage promotion, the 1996 Act and reauthorization proposals codify a series of values about American families.

Despite the increasing importance of family values in PRWORA and other social policies, Dana L. Cloud notes in a recent ideographic analysis of political speeches surrounding the 1992 presidential elections that few rhetorical scholars attend to family values language. Cloud attributes this "scant writing" to "perceptions that this rhetoric was marginal to mainstream politics or that it was unsuccessful in the long term" (1998, p. 388). Few rhetorical studies also exist on the relationship among family values, public argument, and policy-making. In a *Quarterly Journal of Speech* article on legislative debates, for example, Linda Miller concludes that despite a few empirical studies of public controversies in legislative contexts, "the relationship between public argument and policy change remains unclear." Consequently, she calls for "further analysis of the formation of a variety of public policies at the municipal, state or federal legislative levels" (1999, p. 375). Exploring the connection between family constructs and public policy is critical, argue Philip T. Neisser and Sanford F. Schram (1994), because archaic family forms often appear in policy discussions as normative and influence policy outcomes.

Public policies are powerful vehicles for signaling American values, and the hearings and debates surrounding PRWORA's passage provide critics with an appropriate case study to examine the relationship among family values, political arguments, and policy formation. Congressional hearings and debates are important venues for policy-making because they provide a public record of the issues, research, and proposals that ultimately inform legislation (Oleszek, 1996, pp. 110–112). In these deliberations, those who testify—legislators, interest groups, policy experts, concerned citizens—articulate their views about a policy issue and together construct a variety of depictions about the problem and potential solutions. Congressional hearings, argues R. Kent Weaver, also "suggest something about what sorts of information sources legislators value or at least believe should be provided a forum in which to express their views" (2000, p. 141). The committee report that emerges from these hearings, and that reflects any amendments to the proposal, becomes the basis for future floor debates in Congress. Thus, in many respects, legislative hearings and debates help frame future policy decisions. Certainly, a variety of complex factors exert a strong influence on legislative outcomes. Nevertheless, as this study evinces, the link between legislator and witness descriptions of welfare families and corresponding legislation also underscores the significance of language and ideology in shaping policy change.¹

This study focuses on congressional discussions as a process of negotiating or constructing a symbolic reality, which in turn provides the basis for future legislative action. It discusses the construction of welfare families through an analysis of the hearings and debates from the 102nd, 103rd, and 104th Congresses, all of which led to President Clinton's signing of PRWORA. Throughout the legislative process, witnesses and legislators relate stories about families on welfare and compare these families to an ideal nuclear family. This essay demonstrates the rhetorical appeal of the stories and their powerful influence on the resulting 1996 Act. The central argument of the essay is that depictions of welfare families influence legislation that affirms a historically privileged family structure based on the family-wage model. The 1996 Act and subsequent proposals reinforce this married family ideal despite significant research demonstrating that (a) many Americans do not live in traditional nuclear families, (b) there are potential negative consequences of marriage promotion, and (c) federal reforms are unlikely to result in measurable increases in marriage rates. Consequently, since much of this legislation responds to and affirms an ideal family, what political communication scholar Darlaine C. Gardetto terms a "social imaginary family," it cannot offer adequate solutions to the material needs of "real" families (1997, p. 226). Ultimately, the legislation promotes ends (e.g., dependence) antithetical to the legislation's stated goals of independence and self-sufficiency even as it cleaves society along gender, race, and class lines.

To make this argument, I first review the methods and theories that inform this essay. Second, I contextualize the study by highlighting two significant welfare reforms: mothers' pensions and Aid to Dependent Children. Third, I discuss how those who testify in the contemporary hearings and debates characterize welfare families and evaluate those families through the lens of an idealized nuclear family. I conclude with a discussion of the study's implications.

Public Policy as Social Construction: Rhetorical, Political, and Feminist Approaches

This study's objectives suggest a methodological approach rooted in the intersection of rhetorical, political, and feminist studies. These disciplines provide a framework for identifying significant characterizations of welfare families emergent in hearings and debates and assessing their implications for legislation and society. Moreover, these methods are especially suited to deconstructing gender, race, and class in legislation and understanding how such constructions are accomplished and sustained in legislative decisions. Notably, the scholars cited below recognize the value of discursive analyses for understanding public policy and, to varying degrees, grant that public policies are social constructions.

The works of political scientist Murray Edelman, law professor and feminist scholar Martha Fineman, and rhetorical theorist Michael Osborn deserve special note. Edelman's work challenges traditional political science approaches by focusing on the power of language to construct meaning and shape responses. In *Constructing the Political Spectacle*, Edelman (1988) reflects on the complex linguistic construction of leaders, institutions, policy stances, and social problems, and the ways in which political language reinforces dominant ideologies and existing power relationships, thereby partially shaping the reality to which it responds. In *Political Language: Words That Succeed and Policies That Fail*, Edelman considers how language and symbols function to justify public acceptance of policies that result in inequality and deprivation as well as a persistent tolerance of chronic social problems (1977, p. 2). This study builds on Edelman's

work regarding the constitutive power of public policy by providing a case study of how symbolic representations within the hearings and debates influence public policy and reinforce dominant ideologies.

Fineman draws on a similar approach to demonstrate how historic ideologies about families shape contemporary family law. She writes: "Legal regulation is grounded on societal beliefs and expectations that continue to reflect unexamined gendered politics, policies, and practices. . . . Shared societal presumptions about the naturalness and inevitability of existing gendered role definitions and divisions continue to be pervasive" (1995, pp. 6–7, 27). As this case study of welfare evinces, ideologies about the normalcy of two-parent families, with the father as breadwinner and mother as caretaker, exert a powerful influence on welfare reform.

To assess constructions of welfare families, I rely on Osborn's depictive rhetoric. Defined as "strategic pictures, verbal or nonverbal visualizations that linger in the collective memory of audiences as representative of their subjects," rhetorical depictions assume a variety of forms including anecdotes, metaphors, allegories, and empirical evidence (Osborn, 1986, pp. 79, 80). In *Words of Welfare*, Schram identifies an important link between depictions and public policy:

The discursive practices embedded in any particular policy work to prefigure our understandings of policy problems. The use of symbols, metaphors, and other figurative practices promotes the narrative implied by the policy. Symbols, metaphors, and so on narrate a particular understanding of a problem and reinforce the idea that it is an accurate depiction. They "naturalize" that depiction by making it seem to be the only "real way" to understand the problem, and not just one of many ways to understand it. (1995, p. 125)

In the case of welfare reform, depictive forms function as brush strokes in painting a vivid portrait of the typical welfare family and normalizing an "intact" family framework for evaluating welfare families. As communication theorist Kenneth Burke writes, these depictions are "faithful *reflections* of reality" even as they represent selections and deflections of that reality (1957, p. 4). In other words, depictions accurately reflect the lived experiences of some American families, select the experiences of others as normative and ideal, and deflect the lived experiences of others. Ultimately, these depictions of welfare families serve as evidence to support legislative proposals and policies designed to enforce marriage, paternal economic support, and maternal dependence.

The "Mythical Family Ideal": A Representative Anecdote

Understanding the emphasis on marriage in the contemporary welfare reform debate requires contextualizing the American family in light of historical views of the family and significant pieces of welfare legislation. Such a perspective reveals the dominance of a nuclear family as a legal and social norm with profound implications for welfare policies.

Many scholars acknowledge the central role of the nuclear family in U.S. legal and welfare history. Mimi Abramovitz, author of *Regulating the Lives of Women*, traces the dominance of the traditional family model to colonial America. Abramovitz argues convincingly that the family ethic ideology rationalizes a sexual division of labor, assigning women the tasks of homemaking and child care and men the responsibility for earning income (1996, pp. 36–40). In *Life Without Father*, David Popenoe states that "marriage and the nuclear family—mother, father, and children—are the most universal social insti-

tutions in existence” (1996, pp. 2–3). Recognizing the role of cultural ideologies in sustaining the dominance of the nuclear family, Fineman asserts: “The shared assumption is that the appropriate family is founded on the heterosexual couple—a reproductive, biological pairing that is designated as divinely ordained in religion, crucial in social policy, and a normative imperative in ideology.” She concludes: “In law, marriage traditionally has been designated as the only legitimate sexual relationship” (1995, pp. 145, 146).

Mothers’ pensions and the Aid to Dependent Children (ADC) provision of the 1935 Social Security Act—two reforms credited with institutionalizing the family wage model in welfare legislation—illustrate the prominent role of the nuclear family in U.S. welfare legislation. Mothers’ pensions and ADC both reflected reformers’ concern with preserving the family and protecting children while simultaneously reinforcing a woman’s responsibility for her family. Progressive reformers introduced mothers’ pensions to provide cash assistance to single mothers, thereby enabling mothers to remain home and care for their children. As historian Julie Matthaei observes: “Certainly, other ways of rescuing such children were imaginable, such as providing their mothers with job training, jobs and subsidized day-care facilities. The state’s decision to provide cash child-support payments to female heads of households reflected the prevailing public views of family life as woman’s vocation and proper parenting as mothering within the home” (1982, p. 139). Joanne Goodwin, author of *Gender and the Politics of Welfare Reform*, makes a similar point, arguing that “a majority of organized women continued to see women’s greatest potential in traditional terms—as wife and mother” (1997, p. 5).

Adopted in 48 states by 1921, mothers’ pensions may be viewed as radical and feminist because they rewarded women economically for their caretaking work and theoretically reduced women’s economic dependence on men. Nevertheless, the program also reinforced the sexual division of labor with important gender, class, and race consequences. For example, the privileged, largely White female reformers who supported mothers’ pensions advocated a family-wage, breadwinner-housewife structure as ideal even though they themselves did not live such a lifestyle. Gordon explains:

Committed to women’s exclusive mothering and domesticity, they [female reformers] imagined proper family life only with a male breadwinner and a full-time housewife; thus single-mother families, however formed, were defective. In this view they expressed a distinctly elite and white perspective. Many black and/or poor women had different attitudes, experiences, and aspirations. (1994, pp. 32, 72–80).

Reflecting this preference for the family-wage model, mothers’ pensions, for the most part, helped women whose husbands were absent due to death, imprisonment, or physical or mental incapacitation while divorcees, unmarried mothers, and women of minority groups remained largely ineligible. By 1931, over 80% of more than 60,000 families receiving aid nationwide were headed by widows, and 96% of 46,597 families that reported their race were White (Abramovitz, 1996, p. 201). Evidence of racial discrimination was also manifest in two different pensions for White and African American mothers (a higher standard for White mothers) in Washington, DC, a refusal to recognize the family practices of African American and Mexican American families as legitimate, and repeated efforts to “reculture” immigrant families and transform them into “American families” (Gordon, 1994, pp. 46–49, 84–88). Those who qualified for aid received pensions only after enduring an intense investigation process verifying the women’s status as “deserving” and their provision of a “suitable home.”

Despite its policy of aiding only “deserving” mothers, mothers’ pensions provided relief for a significant number of women and their families. In so doing, mothers’ pension programs “foreshadowed the inclusion of a program to aid dependent children in the historic Social Security Act of 1935” (Abramovitz, 1996, p. 205).

Aid to Dependent Children or Title IV of the 1935 Social Security Act was the predecessor to Aid to Families with Dependent Children (AFDC). Unlike social insurance programs that were entirely administered by the federal government, ADC was a federally aided, state administered categorical assistance program. Like the mothers’ pension program, ADC was fraught with gender, class, and race issues. For example, ADC grants were insufficient to raise a family above the poverty level, a practice designed to promote a family-wage structure. Tracing this practice to colonial poor laws, Abramovitz explains: “Trying to keep benefits below current wages continues the poor law practice (known as ‘less eligibility’) of lowering the social wage to assure that public aid does not become more attractive than the lowest paying job, and for women, more attractive than marriage and family life” (1996, p. 317). But unlike mothers’ pensions, which valued women’s caretaking labor with wage compensation, ADC, as its name suggests, supported the child and not the caretaker, thereby not explicitly valuing women’s labor at home in economic terms.

Perhaps the greatest indication that ADC was designed to promote the family wage structure lies in comparing it to other social insurance programs developed as part of the 1935 Social Security Act. Reformers believed that ADC and other welfare programs would wither as Old Age Insurance expanded to cover widows and orphans (Abramovitz, 1996, pp. 317–18; Piven & Cloward, 1971, pp. 111–114). Social insurance programs, reformers rationalized, would eventually make public assistance programs obsolete. But this view, which is based on the acceptance of a normative family wage model, has had profound gender implications. As Goodwin notes:

The family wage ideal ascended as the framework that shaped social policy. It institutionalized a gender system that recognized the location of women’s labor in the home and a system of social insurance that based its benefits upon contributions made predominantly from primary-sector jobs. . . . In a system increasingly defined by wage labor participation, the official standard of the family wage eclipsed women’s labor at home and effectively made women’s wage-earning invisible. (1997, p. 187)

ADC also reflected a class and race bias, perhaps due, in part, to the exclusion of African American, immigrant, and poor women’s views in legislative discussions. White female reformers who had been so active in mothers’ pensions played a minor role in developing ADC legislation, preferring to accede such “family provision” matters to the largely White, male policymakers. Racial and ethnic biases were most apparent in the way states applied eligibility requirements. For example, some states instituted “employable mother” rules that prohibited able-bodied mothers of school-aged children from receiving relief. Critics argued that “employable mother” rules were used to discriminate against African Americans (Gordon, 1994, pp. 145, 275–277).

Over subsequent decades, the profile of welfare recipients changed. Between 1975 and 1994, AFDC families headed by never-married mothers doubled from 33% to 66%. Divorced and separated female-headed families also consumed a considerable part of the 1994 AFDC caseload at 30%, while widows represented only 2% (Cammisa, 1998, p. 16). At the same time, the public’s “view of program recipients had become increas-

ingly hostile” (Axinn & Levin, 1997, p. 285). Growing public resentment foreshadowed critiques of the current system and more restrictive welfare policies.

The Birth of PRWORA

In 1993, Bill Clinton took office, pledging to “end welfare as we know it.” In an interview with the author on March 19, 1999, Ron Haskins, staff director for the Subcommittee on Human Resources of the House Committee on Ways and Means, revealed that Republican leaders were mindful of welfare’s political importance, and they carefully planned a strategy to ensure a Republican victory. To that end, beginning in July 1992, Republicans authored pieces such as “Moving Ahead: How America Can Reduce Poverty Through Work” to educate key legislators about welfare reform issues and concerns. As they prepared to control the House of Representatives, Republicans organized task forces and constructed several welfare reform proposals grounded in the “Moving Ahead” document. The *Contract with America*, the group of proposals endorsed by the Republican party prior to the 1995 November congressional elections, was one of the most well publicized of these proposals. Other interested political agents also penned welfare proposals. President Clinton introduced the “Work and Responsibility Act of 1994,” a logical extension of the Family Support Act of 1988, which Clinton helped negotiate during his tenure as Arkansas governor and head of the National Governors’ Association (NGA) (Abramovitz, 1996, p. 361; Cammisa, 1998, pp. 57, 64–65, 72). The NGA also offered an influential proposal that was touted as a bipartisan effort.

Legislators discussed these proposals in a series of hearings and debates held from 1992 to 1996, the majority of which occurred during the Republican dominated 104th Congress. The result was PRWORA.² Marriage promotion surfaced as a central and controversial issue in PRWORA and reauthorization discussions. As is evident in the section below, throughout the welfare reform hearings and debates that led to the passage of the 1996 Act, witnesses and legislators relied on a married family ideal to evaluate welfare families. Like their predecessors who advocated for mothers’ pensions and ADC, those who testified in the 1996 hearings used depictions of welfare families and perceptions of ideal families to warrant marriage supportive policies.

The Married Family Ideal Thrives in PRWORA Discussions

In the hearings and debates, witnesses and legislators demonstrate a preference for the traditional nuclear family, or what Representative Amo Houghton (R-NY) refers to as a “normal sort of classic family” (House Committee on Ways and Means, January 10, 1995, pp. 234–235). Those who testify justify their predilection for this family ideal on the basis of empirical data and personal preference.³

Some evidence suggests that “intact” families are beneficial to children, families, and society. For example, data indicate that children in single-parent families (especially those on welfare) fare worse than children in “intact” nuclear families. Clearly delineating the value of the “intact” family, Dr. Nicholas Zill, vice president and director of child and family studies for Westat, Incorporated in Maryland, asserts:

What the findings of these studies consistently show is that in our society the best thing for a child’s well-being is to be raised by both biological parents, who live together in a reasonably harmonious—but not necessarily a perfectly fulfilling—marriage. Growing up in a single-parent family, a step-

family and, indeed, virtually any family type other than an intact two-parent family is associated with poorer health, lower achievement and an increased incidence of conduct and emotional problems in children. (House Committee on Ways and Means, March 12, 1996, p. 46)

Single-parent families also tend to be less economically stable than their married counterparts. According to a February 2003 National Conference of State Legislatures brief, “about 6 percent of children in married-couple families were poor in 1999 compared to more than 35 percent in single-mother families” (Jarchow, 2003, p. 2).

As both primary caregivers and breadwinners, single parents also face barriers to success in the paid labor market. Single-parent families experience these challenges to varying degrees, but the challenges for single mothers on welfare, especially those referred to as the “hard to employ,” are pronounced. LaDonna Pavetti, a senior fellow at Mathematica Policy Research Inc. says such factors include personal and family challenges (e.g., mental or physical health problems), human capital deficits (e.g., limited work experience, low education levels), and logistical obstacles (e.g., transportation difficulties, lack of quality child care) (2002, pp. 135–142).

Legislator attention to different family structures comes during a time of marked changes in family composition. The headline of a front-page May 15, 2001, *New York Times* article highlights this changing family demographic: “For First Time, Nuclear Families Drop Below 25% of Households” (Schmitt, 2001). At the same time, the article also points out an increase in single-parent families: “The number of families headed by women who have children . . . grew nearly five times faster in the 1990s than the number of married couples.” Wade F. Horn and Isabel V. Sawhill add that the divorce rate doubled from 1960 to 1980, with 40 out of every 100 marriages ending in divorce today (2001, p. 421). These changes in marriage patterns mean that many children are likely to live at least part of their lives in single-parent families. Horn and Sawhill note that “by some estimates, 60% of children born in the 1990s will spend a significant portion of their childhood in a home without their father” (2001, p. 421). More recently, Sara McLanahan, Irwin Garfinkel, and Ronald B. Mincy estimate that “one of three children in the U.S. is born to unmarried parents” (2002, p. 152).

Marriage and divorce statistics among low-income families are especially striking according to data from the Fragile Families Study, one of the largest studies of low-income families to date, and from the Three-City Study, an ongoing research project involving low-income families in Boston, Chicago, and San Antonio. Specifically, Andrew Cherlin and Paula Fomby observed a modest 4% increase in the percentage of children living with two adults after one year, but this increase was largely due to cohabitation (and not marriage) and typically with “a man who was not the child’s biological father.” Further, “42 percent of the mothers who were cohabiting at the first interview had ended the relationship by the second interview [and] 18 percent of the mothers who were married at the first interview had separated by the second interview” (2002, pp. 1–3). According to a June 2002 Fragile Families research brief, “The Living Arrangements of New Unmarried Mothers,” approximately one third (34%) of the mothers lived in a “nuclear” household (defined as a mother, father, and child living together), one third (33%) lived with other adults, 17% lived alone, and 15% lived with a partner and another adult. These data suggest that the nuclear family (and all of the benefits associated with this structure) is not necessarily the primary or dominant family form. Clearly, then, there are some real-world indicators that warrant legislator concern with and discussion of single-parent families.

In addition to empirical evidence, legislators and witnesses also demonstrate a normative preference for the “intact” family. In a telling statement, Representative Sander Levin (D-MI) remarks: “Maybe I am old fashioned. I think there is a strong preference for a two-parent family” (House Committee on Ways and Means, March 12, 1996, pp. 73, 80). Observing the historical role of the traditional family, Charles Murray of the American Enterprise Institute claims: “Throughout human history, a single woman with a small child has not been a viable economic unit; neither have the single woman and child been a legitimate social unit” (House Committee on Ways and Means, July 29, 1994, p. 847; Senate Committee on Finance, January 18 and February 25, 1994, p. 181). Elaborating on the importance of “intact” families, Senator Dan Coats (R-IN) explains: “Families are the seedbed of all our skills and attitudes. They teach us our view of work and the importance of moral truths. . . . During countless eras when no other organized unit of society even functioned, the family was the institution that made survival of the cultural, political, economic, and social order possible” (Senate Committee on Labor and Human Resources, February 28, 1995, p. 3; “Personal Responsibility, Work Opportunity, and Medicaid Restructuring Act of 1996,” *Congressional Record*, July 23, 1996, p. S8513). According to these passages, “intact” families are the crucible of American civilization: Families safeguard core values by transmitting them to their children, a process that ensures a thriving and productive citizenship. In the end, these empirical measures and personal preferences validate marriage and engender support for marriage as a reform strategy.

Legislator Constructions of Welfare Families

With an “intact” family ideal as a frame of reference, legislators and witnesses discuss families on welfare. As Dr. Joe S. McIlhaney, president of the Medical Institute for Sexual Health in Austin, Texas suggests, representatives and witnesses frequently compare and contrast the “intact” ideal family with single-parent welfare families. McIlhaney argues: “[There are] two communities in our society. First, the community of two people who love each other, live together for life, have children, and offer those children greater opportunities. The second community is of single parents, often forced to live in poverty with diminished hopes for their children and with all the diseases we have been talking about” (House Committee on Ways and Means, March 12, 1996, p. 67). Many representatives compare the ideal families to what they refer to as “broken families” or “dysfunctional” families. Representative Roukema (R-NJ) claims, for example, that the welfare system “promotes unhealthy, unproductive, dysfunctional families that sentence children to a lifetime of economic, social, and emotional deprivation” (“Personal Responsibility Act of 1995,” *Congressional Record*, March 21, 1995, p. H3374).

Importantly, those who testify about the harmful consequences of single parent families advance causal arguments, beginning with the assumption that out-of-wedlock births result in welfare dependence. In a March 1996 hearing titled “Causes of Poverty With a Focus on Out-Of-Wedlock Births,” Chairman Clay Shaw (R-FL) asserts: “Out-of-wedlock birth is the driving force behind surging welfare caseloads and long-term dependence” (House Committee on Ways and Means, March 12, 1996, p. 2). Later in the legislative process, Senator Trent Lott (R-MS) concisely concludes: “There is already a national consensus that illegitimacy is the key factor that drives the growth of welfare. It is the single most powerful force pushing women and children into poverty” (“Family Self-Sufficiency Act,” *Congressional Record*, September 7, 1995, p. S12794).

Many witnesses and legislators contend that out-of-wedlock births and single-parent

families harm society because they result in a variety of pathologies including welfare dependence, crime, drugs, moral degeneracy, and disease. Heidi H. Stirrup, director of government relations for the Christian Coalition in Washington, DC, testifies, for example, that "Few will dispute the fact that there is a moral and social decline in America today, beginning with the decay of the very basic unit of our society—the family." Stirrup concludes that "illegitimacy" is "the single most important social problem today largely because it contributes to many other social problems such as crime, drugs, poverty, illiteracy, welfare and homelessness" (Senate Committee on Finance, February 29, 1996, pp. 106, 204). Echoing witness testimony, Representative Shaw (R-FL) asserts: "The one thing that unifies I think this Congress is illegitimacy is really tearing up society . . . and it is really creating havoc from an economic standpoint, from a standpoint of lawlessness" (House Committee on Ways and Means, July 26, 1994, p. 396). Representative James Talent (R-MO) argues that out-of-wedlock births are "one of the biggest threats to American life and our lifestyle, to continued decency and prosperity in this country" (House Committee on Ways and Means, July 27, 1994, p. 546). And Senator Phil Gramm (R-TX) warns:

Under the current trend, illegitimacy could be the norm and not the exception in America by the turn of the century. I think anybody who is not frightened by this prospect fails to understand that no great civilization has ever risen in history that was not built on strong families. No civilization has ever survived the destruction of its families, and I do not believe America is going to be the first. ("Family Self-Sufficiency Act," *Congressional Record*, September 6, 1995, p. S12690)

These passages, which target all single-parent families as threats to society, blur the distinction between welfare families and other families, many of which do not conform to the "intact" family model.

Those who testify are especially mindful of how single-parent families affect children in terms of health, education, relationships, and self-sufficiency. Nancy Ebb, senior staff attorney for the Children's Defense Fund, reports that "AFDC children are three times more likely than non-poor children to be in poor health. Nearly one-third more suffer from delays in growth of development, a 'significant' emotional or behavioral problem, or a learning disability" (House Committee on Ways and Means, March 11, 1993, p. 85). Senator Charles E. Grassley (R-IA) points out in both the hearings and the debates: "Recent studies have shown, however, that children born outside marriage are 2 to 3 times more likely to have emotional or behavioral problems than those in intact families. They have higher risks of child abuse and neglect, poor performance in school, having children of their own as teenagers, having their own marriages end in divorce, and six times greater risk of being poor" (Senate Finance Committee, July 13, 1994, p. 37; Senate Committee on Governmental Affairs, January 25, 1995, p. 36; "Family Self-Sufficiency Act," *Congressional Record*, September 13, 1995, p. S13509).

Most legislators are gravely concerned because they believe that the current welfare system undermines the family by discouraging marriage, encouraging women to leave their husbands, impairing the ability of men to provide for their families, and substituting governmental supervision for parental responsibility. Representative David McIntosh (R-IN) contends that the "welfare system . . . creates incentives for women to leave their husbands in order to receive benefits, it penalizes families that stick together, and it ultimately undermines the family as an institution in our society" ("Personal Responsibility

Act of 1995,” *Congressional Record*, March 23, 1995, p. H3687). Senator Barbara Mikulski (D-MD) explains she is “concerned that the very nature of welfare rules themselves works against men and that essentially the message to women in many instances is that you will do better if the man leaves the house than if he stays in the house.” Consequently, Mikulski, like other witnesses and legislators, warns that the welfare system is “emasculating” men by supporting the “dismissal of men as having an important role . . . in the family,” characterizing men as “simply a revenue stream in loafers,” and usurping the role of father as husband and breadwinner (Senate Committee on Labor and Human Resources, February 28, 1995, pp. 12, 160, 161). Later in the debates, Representative Charlie Norwood (R-GA) inquires:

Could the welfare system be any more destructive to the family than it is? It has made fathers trivial. . . . Why do children need fathers in today’s America? The food on their table comes from food stamps. The roof over their head comes from public housing. When you need a doctor, there’s always Medicaid. And of course the clothes on their backs come by way of a welfare check. We are replacing the financial importance of fathers with the power of the Federal Government to take from one man’s labor and give to others. (“Welfare Reform Needed in America,” *Congressional Record*, March 23, 1995, p. H3716)

Comments like these suggest that the welfare system forces men from their homes and takes away their primary role as family breadwinner.

Legislating the Traditional Family Ideal

As is evident in the preceding discussion, legislator and witness perceptions of families are based on empirical evidence, anecdotal stories, and the sense that the traditional family is a normative imperative. Framing the welfare hearings and debates through the lens of a family wage model suggests a narrative in which “intact” families are the best family form. Senator Bob Dole (R-KS) acknowledges as much, stating “So today we begin to write a new story . . . a story about an America that recognizes that the family is the most important unit in our society” (“Family Self-Sufficiency Act,” *Congressional Record*, September 19, 1995, p. S13801).

Not surprisingly, many of the proposals witnesses and legislators advance are designed to encourage nuclear families by promoting marriage or “marriagefare”/“wedfare” (“Family Self-Sufficiency Act,” *Congressional Record*, August 7, 1995, p. S11754; House Committee on Ways and Means, January 12, 1995, p. 611). President Clinton’s 1994 Work and Responsibility Act asserts that “public policy ought to promote the establishment of two-parent families . . . living together within marriage” (House Committee on Ways and Means, July 26, 1994, p. 257). Many proposals offer benefits and economic incentives to couples who marry. “Public Housing for Intact Families” (of S. 1204), proposes housing modifications to give “preference to any family that includes 2 individuals who are legally married to each other” (“Family Self-Sufficiency Act,” *Congressional Record*, September 6, 1995, p. S12720). Senator Thomas Daschle (D-SD) favors a Republican bill designed to end the tax disincentives to marriage, often referred to as a marriage penalty: “Today, if a welfare recipient is married, that person is ineligible for the full benefits created through the welfare system. That is wrong. So we eliminate the penalty for married welfare recipients” (“Family Self-Sufficiency Act,” *Congressional*

Record, August 7, 1995, pp. S11800–11801). Other proposals offer men financial incentives to marry the mother of their child(ren). For example, Clinton's 1994 Work and Responsibility Act offers fathers an opportunity for child support forgiveness. "Under the proposal, families who unite or reunite in marriage can have their arrearages suspended or forgiven if the family income is less than twice the Federal Poverty guideline" (House Committee on Ways and Means, July 26, 1994, pp. 257–258).

Still other proposals include penalties and sanctions for those considering divorce. For example, one section of S. 1207, titled "Set-Aside for States with Approved Family Reconciliation Plans," makes divorce difficult. The amendment declares that "(1) a State must have in effect laws requiring that prior to a final dissolution of marriage of a couple who have one or more children under 12 years, the couple shall be required to— . . . (B) participate in counseling programs . . . that include discussion of the psychological and economic impact of the divorce on the couple, the children of the couple, and society" ("Family Self-Sufficiency Act," *Congressional Record*, September 6, 1995, pp. S12716, S12722). Relying on the "intact" family standard, this and other proposals aim to discourage "union dissolution."

PRWORA affirms the marriage emphasis of these proposals. As quoted in the epigraph to this article, the act begins, not by addressing poverty, but by affirming marriage as "the foundation of a successful society" (*Personal Responsibility and Work Opportunity Reconciliation Act, Statutes at Large* 110, 1996, p. 2110). PRWORA also allocates money to States for abstinence education. The law specifies that the purpose of such education is to teach people "that a mutually faithful monogamous relationship in context of marriage is the expected standard of human sexual activity," and that "sexual activity outside of the context of marriage is likely to have harmful psychological and physical effects," as well as "harmful consequences for the child, the child's parents, and society" (*Personal Responsibility and Work Opportunity Reconciliation Act, Statutes at Large* 110, 1996, p. 2354).⁴ Like mothers' pensions and ADC legislation, discussions surrounding the 1996 Act are charged with race, class, and gender issues.

Racial Characterizations of Welfare Mothers and Fathers

Those who testify in the hearings and debates typically characterize welfare families as African American, a historically consistent and powerful link between minorities and undeserving welfare status. Noting this connection and its mediated roots, Representative Harold E. Ford (D-TN) comments: "In all of the television shows that we have seen, we have projected African-Americans to be the cheats on welfare" (House Committee on Ways and Means, February 2, 1995, p. 985). Rarely are these images contested.

Witnesses and legislators disproportionately link African American and Hispanic families to the chronic poverty, out-of-wedlock births, and undesirable behaviors associated with welfare families. For example, Murray points out: "The 1991 story for blacks is that illegitimacy has now reached 68% of births to black women . . . the values of unsocialized male adolescents made norms—physical violence, immediate gratification, and predatory sex. This is the culture now taking over the black inner city" (Senate Committee on Finance, January 18 and February 25, 1994, pp. 179–180). New York Representative Floyd Flake (D) adds: "We as African-American people are going to have to deal with the reality that there are some problems endemic to our communities and to our people. . . . Our minorities, and principally African-Americans often need extra help" (House Committee on Ways and Means, July 27, 1994, p. 569). Later in the hearing process, Representative Philip Crane (R-IL) remarks:

Back in the midtwenties in New York, 85% of black families were still together and they looked after their children. And today they are projecting that by the year 2000 in our major cities, 85% of black children are going to be illegitimates if these trends aren't reversed. You bring a child up in a handicapped circumstance like that with no future and the deterioration of our educational system where he is illiterate, he has nothing to look forward to, and he has the enticement of gangs and drugs and so forth. (House Committee on Ways and Means, January 11, 1995, p. 328)

Such comments powerfully relegate problems associated with "illegitimacy" and poverty to minority groups, principally African Americans.

Constructions of welfare mothers as predominantly African American facilitate extended conversations in the hearings about how to ease restrictions on interracial adoptions. One of the amendments to H.R. 4 in Title II—Child Protection Block Grant Program, "SEC. 430. Removal of Barriers to Interethnic Adoption," purports "to decrease the length of time that children wait to be adopted and to prevent discrimination in the placement of children on the basis of race, color, or national origin" ("Personal Responsibility Act of 1995," *Congressional Record*, March 22, 1995, p. H3458). Speaking on behalf of this amendment, Senator John McCain (R-AZ) notes that "sound research has found that interracial adoptions do not hurt the children or deprive them of their culture" ("Family Self-Sufficiency Act," *Congressional Record*, September 19, 1995, p. S13777). Representative Jim Bunning (R-KY) explains that

This is not an indictment of the black community. Black Americans have a long tradition of "taking care of their own" through informal adoption, kinship care, and other arrangements that are not made public and do not show up in official counts. But, given all that the black community has done, and given 20 years of Federal money going for minority recruitment, we still have a large number of black children with no place to call home. ("Personal Responsibility Act of 1995," *Congressional Record*, March 22, 1995, p. H3526).

Indeed, depictions of welfare families as typically African American, legislator preference for two-parent families, and research about the effects of welfare families on children foster favorable consideration of interracial adoption proposals.

The focus on Black welfare recipients is especially interesting given empirical data available to legislators. While data show that Black women are disproportionately represented on the welfare rolls relative to their population and are more likely to rely on welfare for long-term spells, it is also a fact that Black welfare recipients represent a smaller percentage of total welfare recipients and the poor than Whites (Gilens, 1999, p. 102; Weaver, 2000, pp. 20–21). Further, according to welfare scholars Mary Jo Bane and David Ellwood, "the impact of race per se is quite modest [on welfare receipt duration] after controlling for other factors," a fact that would argue against singling out race as an issue (1994, p. 45). Martin Gilens argues that "racial stereotypes play a central role in generating opposition to welfare in America" and "racial stereotypes constitute an obstacle to public support for anti-poverty programs" (1999, p. 3). Gilens explains, using public opinion polls, that most people are supportive of programs to help the poor, but that they also believe that the majority of the poor are undeserving of aid, a fact Gilens attributes to racial stereotyping (pp. 11–30). Still other scholars argue convincingly that stereotypical descriptions of welfare mothers as Black underscore a

historical devaluation of women's (especially women of color) caregiving work (Orloff, 2001, p. 149).

Affirming the Traditional Nuclear Family

Congressional deliberations and welfare legislation also affirm traditional gender norms of men as breadwinners and women as caretakers. Much of the testimony in the hearings and debates validates a man's role as family provider. Stephen H. Martin, state senator of the Commonwealth of Virginia and chair of the Task Force on Empowerment, Opportunity, and Urban Poverty for the American Legislative Exchange Council, observes: "Work is essential to achieve financial security and move upward, but having a job provides a person more than just a paycheck. It gives him a sense of purpose and responsibility. It makes him a role model for his family and compels him to contribute in their enhancement and their success" (House Committee on Ways and Means, January 23, 1995, p. 336). During one hearing, "Contract with America—Overview," Representative Crane (R-IL) fears "the destruction of so many of the traditional values upon which this Republic was founded." Describing those values in terms of the typical American, Crane asserts that "your basic American" is "a God-fearing person. . . . He believes in family and traditional values. . . . He believes in the work ethic and finally when the country goes to war, he is trying to jump in front of you in the line to enlist" (House Committee on Ways and Means, January 5, 1995, p. 18). The gendered "he" pronouns are striking in volumes of testimony where "she" is the standard pronoun used to refer to welfare recipients. Implicitly depicting work, family support, and patriotism as masculine traits, these passages seem to affirm a family wage model with the man as breadwinner and head of household.

Other examples of how legislation codifies fathers as financial providers are found in strict child support provisions. Indeed, the act includes some of the toughest child support enforcement measures historically. PRWORA requires states to operate a child support enforcement program, and the act indicates that children are eligible to use a paternity establishment system until they are 18 years of age, after which time they have no claim on their father's finances (*Personal Responsibility and Work Opportunity Reconciliation Act, Statutes at Large* 110, 1996, pp. 2114, 2245, 2349). If fathers were perceived as providing important benefits beyond financial support, the legislation presumably would have supported paternity identification after children attained adulthood. PRWORA sanctions on men are also largely financial, threatening to impose liens on property, withhold wages, or revoke professional licenses (*Personal Responsibility and Work Opportunity Reconciliation Act, Statutes at Large* 110, 1996, pp. 2205–2206, 2209–2214, 2224, 2225, 2251). Remedies such as child support enforcement, wage withholding, and paternity identification may seem a bit progressive because they acknowledge male responsibility, but, as Fineman claims, the remedies still

reflect the domination of and are derivative and dependent upon the traditional male-headed family model. State-established fatherhood is offered as the panacea for the economic needs of children. Even more disturbing on a symbolic as well as a policy level is the fact that the fatherhood solution is presented as foundational. Fathers are essential to the resolution of problems encompassed by and extending beyond child poverty. (1995, p. 113)

Because welfare legislation is directed at forcibly garnishing the earnings and assets of fathers in support of their children, it reinforces stereotypical gender norms of husbands and fathers as economic providers.

Even as the legislation affirms men's breadwinner status, it also highlights women's primary caregiver status. Indeed, the very labels legislators use to discuss welfare problems, such as "out-of-wedlock births" and "never-married mothers," call attention to women (e.g., as mothers, pregnant women, and childbearers). Other names for "out-of-wedlock childbirth," such as premarital sexual intercourse, might have reframed the discussion to focus on both women's and men's relational choices and reproductive responsibilities. Similarly, legislator use of the term "illegitimacy" to describe children of unmarried mothers focuses attention on women's marital choices, suggesting that "the marital status of the child's mother has implications for the quality of the child" (Fineman, 1995, p. 122).

Like the terms used to characterize welfare problems, much of the evidence furnished in support of proposals and legislation focuses exclusively on women. Typical chart titles reflect this emphasis and include: "Marriage and Divorce Rates Among Women, 1920 to 1991"; "Fertility Rates for Women Ages 15 to 44, All Women and Unmarried Women 1940 to 1991"; "Fertility Rates Among Teenage Women Total and Unmarried, 1940 to 1991"; and "Increases in Number of Poor Divorced and Never-Married Female-Headed Families" (House Committee on Ways and Means, March 11, 1993, pp. 38, 39, 40, 48). Noticeably absent from the hearings, debates, and legislation are data detailing the sexual habits, fertility rates, and marital status of men, or the effect of men's reproductive choices on the well-being of their children.

Further, PRWORA's promotion of the twin goals of work and marriage exposes a tension between welfare recipients as caregivers and breadwinners that is resolved through the hearings and debates in favor of women as caretakers. Representative Ed Pastor (D-AZ) expresses this assessment well when he remarks: "Mothers on welfare have a unique responsibility of having two jobs. First, as a parent. Second, as a principal wage earner" (House Committee on Ways and Means, July 27, 1994, p. 571). Many proposals reflect this perception of women as principally mothers. For example, Senator Diane Feinstein (D-CA) explains:

While work requirements are appropriate for many people, mothers are the most important influence in a young child's life. Work requirements should be compatible with raising a family and guiding young children. I believe a 20-hour work week requirement for mothers with young children . . . is reasonable. ("Personal Responsibility and Work Act of 1995—Conference Report," *Congressional Record*, December 22, 1995, S19166)

Later in the debates, Representative Nancy L. Johnson (R-CT) proposes that welfare mothers could "work for half a day in new day care centers . . . as skilled master teachers. Let welfare mothers, who are good care providers, be the soldiers in those day care centers and then in the afternoon go to education and training centers while other welfare recipients staff the day care centers" ("Welfare and Medicaid Reform Act of 1996," *Congressional Record*, July 18, 1996, H7797). PRWORA itself validates women's primary responsibilities as caregivers through legislation that exempts welfare mothers with children under the age of six from full-time work and exempts women with small children from working altogether if they cannot find satisfactory child care. PRWORA's mandating of second chance homes for some mothers (and not fathers) to learn parenting skills, among other requirements, also fuels the perception that women are primarily responsible for child care. As a result, although the legislation claims to enforce work and personal responsibility, it encourages mothers on welfare to take part-time, low-wage jobs, and encourages women to rely on the financial contributions of others (e.g.,

a partner, family, friends). Even though these strategies seemingly respect the importance of motherhood, they are also probably detrimental to women's self-sufficiency and independence.

Why Marriage? Public Opinion and Demonstration Research

As we have seen, depictions of welfare families emergent in the hearings and debates exert a strong influence on the 1996 Act. Given data on the benefits of "intact" families, risks of single-parent families, and family demographics, one could argue that marriage promotion is sound public policy were it not for some additional factors. Specifically, a review of empirical measures such as public opinion polls and welfare demonstration research suggests that PRWORA reflects empirical measures only partially at best. In some cases, according to leading social scientists, PRWORA seems to ignore relevant findings altogether.

Public opinion, for example, does not appear to inform legislator decisions. Although it is difficult to know the extent to which policymakers were aware of public opinion during the hearings and debates, it is also apparent that legislators did not directly rely on public opinion to warrant policy decisions. Apart from a few vague references to "what the American people want," legislators do not mention public opinion or cite polling data throughout the four years of welfare reform policy deliberations leading to the passage of the 1996 Act.

But even if public opinion did enter the process, PRWORA does not reflect American views fully, as evidenced by polling data that show a discrepancy between public views on some welfare issues and the enacted reforms.⁵ The public, it seems, does not necessarily support PRWORA's more stringent reforms.⁶ Martin Gilens explains that while "the 1996 welfare reforms represented a small step toward bringing antipoverty policy more into line with public desires," "those reforms responded primarily to Americans' cynicism toward welfare recipients and their desire to cut welfare benefits to the undeserving. Only token efforts were made in the 1996 legislation to satisfy the positive desires of the American public to *increase* spending for the deserving poor" (1999, p. 216). Consequently, Gilens asserts that PRWORA represents a "half-finished agenda" (p. 216). Political scientists Lawrence Jacobs and Robert Shapiro agree, claiming that "Clinton and his advisers focused on Americans' opposition to 'welfare' reform but apparently did not seriously explore the public's continuing support for government 'assistance for the poor'" (2000, p. 282).

Leading welfare reform experts, who acknowledge the important role of social experiments in legislative deliberations, also contend that PRWORA does not reflect demonstration research. Manpower Demonstration Research Corporation (MDRC) President Judith M. Gueron (who testified in the welfare hearings) claims: "Previous efforts to reform welfare have been cautious, incremental, and knowledge-based. . . . In contrast, the legislation signed in 1996 was a radical leap into the unknown" (2001, p. 172). Social work and public policy professor Sheldon Danziger concurs, contending that:

Social scientists have conducted hundreds of empirical studies related to various aspects of welfare policies in the thirty-five years since the War on Poverty was declared. Major findings of this research and their policy implications were virtually ignored, however, in the welfare reform debates leading up to President Clinton's signing of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996. (2001, p. 137)⁷

Specifically, some scholars charge legislators with inappropriately using empirical data in the hearings and debates. One case relates to the comparisons between single-parent families on welfare and “intact” families. Fineman argues that contrasting single-parent families with stable two-parent families “disingenuously compares idealized nuclear families with those of single mothers already in trouble” (1995, p. 104; Sidel, 1998, pp. 31–50). Scholars also point out that the focus on single parents in welfare deliberations is misguided and based on a faulty causal argument that single-motherhood results in poverty and other social problems. Fineman explains: “In political and professional discourse, single-Mother status is defined as one of the primary predictors of poverty—predictor often being translated into cause” (1995, p. 106). Offering further evidence to debunk the causal arguments, McLanahan and Garfinkel write:

As compared with children from the same social class who live with both parents, children of single mothers are twice as likely to drop out of high school and to become single parents themselves and half again as likely to have trouble finding and keeping a steady job. But this does not mean that single motherhood is the major cause of these social problems. For example, the dropout rate for the country as a whole is about 19 percent; for children in two-parent families, it is 13 percent. Thus, dropout rates would still be unacceptably high even if there were not single-mother families. (p. A27; Chase-Lansdale, Coley, Lohman, & Pittman, 2002).

Even among scholars who grant that two-parent families are best for children, there is considerable agreement that this fact holds true only when discussing two-parent families where the children are raised by their married biological parents who maintain a low-conflict relationship (Jarchow, 2003; Parke, 2003). In fact, evidence supports the proposition that children of unwed mothers fare similarly to children of divorced, widowed, and separated mothers. McLanahan and Garfinkel report: “People who assail unwed mothers would never dream of using the same language about mothers who are divorced or widowed. But in terms of social problems, there is little distinction. In a comparison of children whose mothers have the same educational background, children of divorced parents do just about as poorly as children of unmarried parents” (1994, p. A27; Parke, 2003). Even testimony used in support of marriage promotion from Dr. Nicholas Zill, cited earlier, concedes a similar point. “Growing up in a single-parent family, a stepfamily and, indeed, virtually any family type other than an intact two-parent family is associated with poorer health, lower achievement and an increased incidence of conduct and emotional problems in children” (House Committee on Ways and Means, March 12, 1996, p. 46). Cherlin concurs based on evidence from the Three-City Study. At a June 12, 2002, Science and Public Policy Briefing, Cherlin reported that the well-being of children in single-parent families is no greater than the well-being of children in stepfamilies. Horn and Sawhill add that “step-families, which have household incomes nearly equivalent to continuously married households, offer children few of the benefits of an intact, two-parent household” (2001, p. 427). Such research casts doubt on the effectiveness of national policies that promote marriage, in general, in order to produce the benefits associated with “intact” families.⁸

But there is additional evidence that marriage promotion may not be sound public policy. Some leading social policy scholars believe that marriage promotion may be harmful to children. Cherlin and Fomby observe, for example, that the number of family transitions a child experiences is a greater predictor of high risk behaviors such as teen pregnancy than time spent in a single-parent family (2002, p. 6). Consequently, children

of women who are married and stay married and children of single parents who remain single may “do better” than children of single parents who remarry. Based on evidence from the Fragile Families Study, Jeanne Brooks-Gunn, senior research affiliate for the Joint Center for Poverty Research at Northwestern University, warns that there are many situations where the biological mothers and fathers simply shouldn’t live together. Citing examples of such instances from the Fragile Families data, McLanahan, Garfinkel, and Mincy note that “approximately 38% of unwed fathers have been incarcerated, which suggests that a substantial proportion of these men have had lifestyles that are potentially harmful to children” (2002, p. 154).⁹

Several social scientists also argue that some data (e.g., stable or declining rates for divorce and teenage pregnancy, an increase in employment and higher earnings for single mothers, and a decline in welfare payments for lower-income families) present a strong case against the focus on marriage (Sawhill, Weaver, & Kane, 2002, pp. 8–19; Sawhill, Weaver, Haskins, & Kane, 2002, p. 160). Evidence suggests as well that marriage is not even the most common route off welfare. Data from the *Green Book* prepared for the Committee on Ways and Means, the House committee of jurisdiction over welfare, indicate that “46% of exits from the AFDC program occur because of work,” while only “11% exit AFDC because of marriage, remarriage, or reconciliation” (1994, p. 450). And in *Welfare Realities: From Rhetoric to Reform*, Bane and Ellwood estimate that approximately 40% of women leave welfare for work, whereas only 29.4% leave for marriage.¹⁰ These statistics imply that marriage may not be as effective in reducing welfare dependence as other strategies.

Further, no research exists on whether programs to promote and strengthen marriages exert a positive effect on increasing marriage rates. Welfare policy expert Brian Wilcox points out that although several programs have shown promise in reducing marital disruption, these programs deal with middle-income families, not low-income or welfare dependent families. A June 2002 research brief from the Welfare Reform and Family Formation Project reports that existing research attends only superficially to the effect of reforms on family formation and that there still exists a “lack of evidence concerning how TANF has influenced family formation thus far” (Fein, London, Mauldon, 2002, pp. 2, 4). Indeed, it would seem that there is no evidence suggesting that governments can be successful in encouraging marriage for low-income populations. The absence of such research is compelling evidence for why legislators should exercise caution in promoting marriage.

Despite all of these facts, policymakers passed legislation and are considering reauthorization proposals that promote marriage. And there is significant evidence that legislators were aware of many of these empirical data. For instance, some legislators were exposed to data indicating that traditional families represented a relatively small percentage of all family types: The “nuclear family, with Dad as the breadwinner and Mom staying home is no longer the norm; approximately 10% of families fit into this category. This certainly should not be the norm for divorced or unwed families” (House Committee on Ways and Means, February 2, 1995, p. 1500). In some cases, and assuming that poverty reduction is a central goal of welfare reform, legislators also heard evidence that might more appropriately shift their emphasis on single-parent families to two-parent families. For example, in one hearing, Representative Fred Grandy (R-IA) and Congressional Research Services Specialist Thomas Gabe presented charts and graphs to rationalize the focus on single-parent families (House Committee on Ways and Means, March 11, 1993, p. 47). Indeed, the graphs demonstrate that a significant number of single-parent families are living in poverty. Perhaps more interesting, however, is that

the graphs also show that there were nearly a million and a half more two-parent families in poverty than female-headed families in 1989. Thus, some evidence raises questions about the almost exclusive focus on single-parent families and implies that family structure may not be as central to welfare reform.

Legislators continued support for marriage in reauthorization discussions despite strong counterevidence in their own 2000 *Green Book*, which reports, in “Implications for TANF”:

Findings presented in this appendix indicate that ending dependence on government benefits through job preparation, work, and marriage—the second objective of TANF—may be an elusive goal. Available evaluations generally show that welfare initiatives have little or no impact on marriage. . . . Programs that increase incomes instead have been found to reduce dependence on welfare. . . . Evaluations indicate that, at least in the short run, many TANF recipients will be unable to escape poverty through work unless taxpayers provide an earnings supplement of some kind” (pp. 1410–1411)

Here, contrary to the emphases on family structure and marriage promotion strategies present in both the 1996 Act and subsequent proposals, research available to legislators indicates that marriage promotion is unlikely to work. On the contrary, increased income and work supplements show promise as poverty reduction strategies.

Legislating Families: Implications and Alternatives

During the welfare reform hearings and debates, witnesses and legislators express a preference for “intact” two-parent families and evaluate welfare families in light of this ideal. Clearly, legislators and other proponents of the “traditional nuclear family” have historical presumption in that legal, social, economic, and religious mandates favor this family form. Empirical data also justify arguments about the benefits of some two-parent families for children and society. But, as this essay points out, the marriage emphasis of PRWORA and reauthorization proposals raises some important concerns. This essay further suggests that discursive frames and ideological commitments to a family-wage model play key roles in public policy discussions, with at least four important implications.

First, this essay reveals the importance of discursive and ideological analyses in understanding policy formation. Rhetorical critical methods are especially useful in exploring how discourses work to sustain, challenge, and reform structural and power relations in various sociohistorical contexts. Referring to this process as “critical rhetoric,” communication theorist Raymie McKerrow outlines a strategy for unmasking the discourse rules and processes that govern who speaks, which topics are appropriate to address, and what counts as authoritative evidence (1989, p. 93). Using a similar approach, policy advocates can expose how the rules and assumptions that govern social policy-making influence legislative outcomes. Adopting a critical perspective to the evidence presented in legislative hearings and debates prepares policymakers, policy advocates, and citizens to evaluate the arguments that warrant policy changes.

A second finding of this study is that PRWORA stratifies and cleaves society along racial, gender, and class lines. Some legislators testified, for example, that the 1996 Act would adversely and disproportionately affect minority groups. Senators Carol Moseley-Braun (D-IL) and Daniel Patrick Moynihan (D-NY) expressed this concern in one hearing, noting that the disparate impact of welfare reform in terms of race and geography “may

very well give rise to a civil rights cause of action” (Senate Committee on Finance, February 28, 1996, p. 95; Senate Committee on Finance, February 29, 1996, p. 120). More recently, at an August 1, 2002, Brookings Institution Welfare Reform and Beyond hearing, Ronald B. Mincy, professor of social policy and social work, charged that some reauthorization proposals would have “differential effects on black and non-black families.” Although Mincy believes that marriage is “better for children,” he also cautioned: “We have had in this country a hundred years of very different family formation patterns by race and ethnicity and as we move into this arena of using welfare policy to influence family formation, we have to respect those differences by race and ethnicity. Otherwise what we’re going to do is try to put a one size fits all policy that in fact doesn’t affect all children in the same way.” By framing the hearings and debates in terms of an ideal family and by implementing policies to encourage the formation of those families, PRWORA essentially codifies traditional family values into a national policy that does not necessarily reflect the realities of many American families. As Stephanie Coontz argues, traditional models demonstrate a “lack of relevance to the lives of most immigrants, Mexican Americans, African Americans, rural families, and the urban poor” (1995, p. 12; Allen, 2000; Carothers, 1998, p. 316). These observations urge policymakers to avoid solutions based on “typical welfare recipient” categories without careful attention to factors such as race and class.

Another way the welfare legislation fuels divisiveness is by regulating the sexual reproductive behavior of lower-income, unmarried women. For example, family cap experiments penalize mothers (and their families) for bearing children while on welfare. Funds for abstinence programs that include a ban on contraception discussion—funds that are extended in the GOP House bill passed on February 13, 2003—prevent these same women from learning about how to manage their sexual and reproductive health. Importantly, access to contraceptive information remains available to many other women who are married and/or who have economic means. Since welfare reforms do not similarly penalize men of any class for their reproductive behavior and since welfare reforms do not similarly penalize women in traditional family structures and/or of sufficient financial means, the reforms exhibit both a sex and class double standard.

The welfare reform hearings, debates, and resulting legislation may further fuel divisiveness by solidifying links among welfare, lower-income minority women, and social pathologies including crime, drug abuse, and violence. These links often supported in the media, whether explicit or implicit, may encourage legislators to view welfare recipients, especially minority recipients, with suspicion (Gilens, 1999, pp. 102–153). Stigmatizing adults and children on welfare is harmful and counterproductive. Work promotion strategies predicated on employers hiring welfare recipients, for example, are doomed to failure if welfare recipients are systematically linked to social ills. Employers may believe that investing in welfare recipients is not worth the perceived risks.

Stigmatizing recipients also encourages disdain for dependence. Since women’s historical responsibilities as caretakers and nurturers require some level of dependence, such activities are at further risk of being devalued. With the passage of PRWORA, “caregiving has been shifted to an even more marginal status within the U.S. policy regime, as claims based on the status of family caregiver have been eliminated” (Orloff, 2001, p. 141). This shift has profound implications for women because they, in their roles of wives, mothers, and daughters, have largely borne the responsibility of dependence. Fineman writes: “Women are not compensated for bearing these costs, and in the make-believe world of abstract legal equality they are, in fact, penalized” (1995, pp. 25–26). Promotion of a two-parent family wage model (as in the case of welfare reforms) to care for dependents results

in the privatization of dependency, obscuring the reality that “everyone in society—both those welfare recipients who are currently labeled dependent and the members of other, more fortunate classes who receive their subsidies through the tax system or social security—is the recipient of government support in some form” (Fineman, 2001, p. 37).

A third implication of this essay is that ideological commitments to a married family ideal discourage policymakers from seeking and considering solutions that might allow different family models to flourish.¹¹ However desirable the traditional nuclear family may be and however ingrained the idea of “intact families” is in American culture, aspiring to and/or enforcing the ideal may dissuade policymakers from examining the benefits of a wide range of healthy family forms or from seeking solutions that address the material realities of many families who do not conform to the ideal. Several scholars have pointed to effective welfare reform strategies such as earnings supplements, increased wages, child care subsidies, and health care subsidies, all of which would assist single-parent families in escaping poverty (Hirschmann & Liebert, 2001, pp. 111–182; Sawhill, Weaver, Haskins, & Kane, 2002;). Still others urge a reconsideration of how we, as a society value the work of caring and nurturing (Hartmann & Hsiao-ye Yi, 2001, p. 175; Tronto, 2001, p. 72). These strategies, however, are all predicated on acknowledging “nontraditional” family structures as valuable (or at least legitimate and inescapable), caretaking as essential work worthy of economic support, and dependency as an inevitable and even desirable component of healthy societies. Current policy discussions are unlikely to recognize such realities because, as Coontz concludes: “Romanticizing ‘traditional’ families and gender roles will not produce the changes in job structures, work policies, child care, medical practice, educational preparation, political discourse, and gender inequities that would permit families to develop moral and ethical systems relevant to [today’s] realities” (1995, p. 14).

Fourth and finally, this essay implies the need to examine mediated portrayals of welfare in greater detail. Legislator and witness perceptions of welfare families are frequently supported in the media. Those who testify frequently mention stories they read in newspapers or popular magazines such as *Reader’s Digest* to support their claims. For example, Representative Roukema (R-NJ) argues in one debate that some welfare recipients are “skillfully gaming the system” so they can “live off welfare.” In support, she states: “We all saw the article last month in the *Boston Globe* about four generations of one family—one mother, 17 children, 74 grandchildren, and an unknown number of great-grandchildren—living in Massachusetts on welfare of some kind or another.” Representative Roukema uses this instance to justify her endorsement of time limits included in the Personal Responsibility Act of 1995 (“Personal Responsibility Act of 1995,” *Congressional Record*, March 21, 1995, p. H3374). Weaver explains that “policymakers read stories in the newspapers about welfare recipients who have six or seven children by different fathers, abuse drugs, and raise children who themselves go on to become welfare dependent for long periods” (2000, p. 135). This “ordinary knowledge” that is not based on systematic social science methods, “paints a vivid portrait of real people with names and faces attached; it can seem far more real than piles of statistics, especially if it fits with and reinforces images or stereotypes that people already hold about how the world works” (p. 136). The force of such ordinary knowledge in policy deliberations may be magnified because, as Weaver observes, much of the information legislators receive can be categorized, not as social science but, rather, as “ordinary knowledge” (p. 135). Given the influence of this “ordinary knowledge,” further study of mediated representations of welfare recipients and families, in general, as well as the impact of such representations on public perception and legislative outcomes, is warranted.

Notes

1. For additional studies on the role of language in policy-making, see Gring-Pemle (2001), Halloran (1978), and Naples (1997).

2. Essentially, PRWORA decreases welfare spending by \$55 billion over five years, limits welfare receipt to two years after which time recipients must work, establishes a five-year lifetime limit on the use of federal dollars for welfare, and allocates a lump-sum payment (the Temporary Assistance to Needy Families block grant) to states to create state-based welfare programs (Sawhill, Weaver, Haskins, & Kane, 2002, pp. 3-29).

3. The hearings and debates contain abundant examples illustrative of the points made throughout this essay. In light of space constraints, I have selected the most representative ones.

4. For information on state use of TANF funds to encourage marriage and discourage "union dissolution" consult Jarchow (2003) and Fein, London, and Mauldon (2002).

5. Measures of public opinion (e.g., public opinion polls) have generated significant discussion among scholars from a variety of disciplines. Several scholars argue that polls serve a vital role in the democratic process at the state (Norrander & Wilcox, 1999; Shaw, 2000) and federal (Heith, 2000) levels, leading to the popular assumption that "policy change directly reflects changes in public opinion on substantive issues" (Hogan, 1997; Stimson, MacKuen, Erickson, 1995; Weaver, 2000, p. 169). Skeptical of the influence of opinion polls on the policy-making process, other scholars, such as political scientist Alan D. Monroe, have observed a decline in the consistency between public opinion and public policy between 1980 and 1993 (1998, p. 7). More recently, in their book *Politicians Don't Pander*, Lawrence R. Jacobs and Robert Y. Shapiro claim that "the influence of public opinion on government policy is *less* than it has been in the past and certainly less than commonly assumed by political pundits and some scholars" (2000, p. xvi).

6. Comparing public views regarding child care and work exemptions to PRWORA provides an appropriate example. A November 30, 1993, *U.S. News and World Report* poll reports that 71% of respondents favored work requirement exemptions for single parents with drug and alcohol problems, 63% desired exemptions for families that "the government cannot find a job and provide child care for," and 60% said families should be exempt from work requirements if they "cannot find a job where jobs are hard to find." According to a January 24, 1997, Associated Press poll, 57% of respondents said women with children younger than age one should be exempt from work requirements, and 40% said women with children younger than three ought to be exempt (Gilens, 1999, p. 186). PRWORA's work requirements are arguably more severe than what these polls suggest are supported by the public. Under PRWORA, states cannot terminate assistance to single parents who fail to meet work requirements if child care is unavailable, unsuitable, or unaffordable, but states may choose whether to exempt mothers with children younger than one from work (*Personal Responsibility and Work Opportunity Reconciliation Act, Statutes at Large* 110, 1996, pp. 2131, 2133). Offering some compelling reasons for this discrepancy, R. Kent Weaver, Robert Y. Shapiro, and Lawrence R. Jacobs (1995) explain that "examining trends in public opinion toward particular proposed welfare reform proposals currently being debated is hampered by the paucity thus far of identically worded survey questions repeated over time" (1995, p. 608). Weaver points out that another "basic problem in analyzing public opinion toward welfare and welfare reform is that it may not be clear what the public means by the terms when responding to questions, because surveys do not identify specific programs" (2000, p. 172). "Priming" is a third problem associated with assessing public opinion. During the hearings and debates leading to PRWORA's passage, "both the Clinton administration and Republicans invested heavily in trying to influence how the public sees welfare and in trying to associate the other part with unpopular positions" (Weaver, 2000, p. 171). This "priming" led to growing public resentment of the welfare system prior to PRWORA's passage as well as to the prominence of the issue on the public agenda.

7. Taking a more moderate approach, Weaver finds that "politicians neither ignored nor relied completely on policy research about problems and programs; instead, they weighed the research against other types of knowledge and electoral and coalitional considerations" (2000, p. 168).

8. For an alternative view, consult Haskins and Primus (2002, pp. 68–69).
9. For an opposing view, consult a Fragile Families research brief on fathers (2000).
10. Using a hierarchical classification system, Bane and Ellwood present evidence showing that 29.4% of all endings to welfare are attributable to a female household head becoming a wife, and 25% can be traced to an increase in earnings (1994, p. 57). But the authors also acknowledge that different classification systems yield different results, writing that “if we had to pick a single number for the significance of work exits, we’d probably pick one closer to the 40% who had moderate earnings in their first year of welfare than the 25% we find using our hierarchical classification system” (p. 59).
11. Naples makes a similar argument (1997, p. 937). See also Axinn and Hirsch (1993).

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